

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>		1. SOLICITATION NUMBER FA461025R00060003	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 12 Feb 2025	PAGE OF PAGES 1 56
		IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.			
4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NUMBER		6. PROJECT NUMBER WOOKIE MACC 2025	
7. ISSUED BY FA4610 30 CONS PK 1515 ICELAND AVE RM 150, VANDENBERG SFB CA 93437-5212 VANDENBERG SFB, CA 93437-5212 UNITED STATES Jennifer Paccioretti, Email: jennifer.paccioretti@spaceforce.mil Telephone: 276-6367		CODE FA4610	8. ADDRESS OFFER TO		
9. FOR INFORMATION CALL:		a. NAME Jennifer Paccioretti		b. TELEPHONE NUMBER (Include area code) (NO COLLECT CALLS) 276-6367	
SOLICITATION					
NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".					
10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS <i>(Title, identifying number, date)</i> Project Title: Western-Range Operational Ordering Contract for Infrastructure Enhancement (WOOKIE) Multiple Award Construction Contract (MACC) Project Location: Vandenberg Space Force Base The Government requires performance of the work described in these documents. Indefinite Delivery/Indefinite Quantity (IDIQ) Western-Range Operational Ordering Contract for Infrastructure Enhancement (WOOKIE) Multiple Award Construction Contract (MACC) A. This is a request for proposal for the WOOKIE MACC program at Vandenberg Space Force Base (SFB). B. This acquisition is set aside for competition restricted to 8(a) Business Development (BD) program participants and the assigned NAICS. All other 8(a) BD Participants are deemed ineligible to submit offers. C. NAICS: 236220, Size Standard: \$45M D. Up to five (5) IDIQ contracts using firm-fixed price (FFP) task orders will be awarded as a result of this solicitation. E. Task orders will be awarded in accordance with the WOOKIE MACC Statement of Work (SOW). F. The WOOKIE MACC program will not exceed \$525M combined for all contracts. Task orders will range from \$2K to \$25M. Contracts awarded as a result of this solicitation will receive a \$2,000 minimum guarantee. G. See the WOOKIE MACC SOW and other attachments as identified in Section J. H. A pre-proposal conference is scheduled for 20 February 2025 at 0900 Pacific Time. The conference will be held at 1515 Iceland Avenue, Bldg 8500, Room 215, Vandenberg Space Force Base, California, 93437. I. Proposals shall be valid through 30 September 2025.					
11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>2740</u> calendar days after receiving ☒ award, ☐ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See <u>FAR 52.211-10</u>).					
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO				12b. CALENDAR DAYS 10	
13. ADDITIONAL SOLICITATION REQUIREMENTS:					
a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by <u>12:00 PM</u> <i>(hour)</i> local time <u>13 Mar 2025</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.					
b. An offer guarantee ☐ is, ☒ is not required.					
c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.					
d. Offers providing less than <u>201</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.					

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER	0002	0001								
DATE	27 Feb 2025	19 Feb 2025								

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
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AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT		23. ACCOUNTING AND APPROPRIATION DATA	
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()	
26. ADMINISTERED BY		27. PAYMENT WILL BE MADE BY	

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print)	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

Section A - Solicitation/Contract Form

Western-Range Operational Ordering Contract for Infrastructure Enhancement (WOOKIE) Multiple Award Construction Contract (MACC) Indefinite Delivery Indefinite Quantity (IDIQ)

Product Service Code: Z2JZ

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

CONTRACT MINIMUM/MAXIMUM QUANTITY AND CONTRACT VALUE

The minimum quantity and contract value for all orders issued against this contract shall not be less than the minimum quantity and contract value stated in the following table. The maximum quantity and contract value for all orders issued against this contract shall not exceed the maximum quantity and contract value stated in the following table.

MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
1.00	\$2,000.00	189.00	\$562,500,000.00

DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND ORDER VALUE

The minimum quantity and order value for each Delivery/Task Order issued shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for each Delivery/Task Order issued shall not exceed the maximum quantity and order value stated in the following table.

MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
1.00	\$2,000.00	1.00	\$25,000,000.00

CLIN MINIMUM/MAXIMUM QUANTITY AND CLIN VALUE

The minimum quantity(s) and CLIN value(s) for all orders issued against the CLIN(s) on this contract shall not be less than the minimum quantity(s) and CLIN value(s) stated in the following table. The maximum quantity(s) and CLIN value(s) for all orders issued against the CLIN(s) on this contract shall not exceed the maximum quantity(s) and CLIN value(s) stated in the following table.

CLIN	MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
0001	0.00	\$2,000.00	125.00	\$562,500,000.00
0002	1.00	\$2,000.00	1.00	\$2,000.00
1001	0.00	\$2,000.00	50.00	\$562,500,000.00

CLIN DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND CLIN ORDER VALUE

The minimum quantity and order value for the given Delivery/Task Order issued for this CLIN shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for the given Delivery/Task Order issued for this CLIN shall not exceed the maximum quantity and order value stated in the following table.

CLIN	MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
0001	1.00	\$2,000.00	1.0	\$25,000,000.00
0002	1.00	\$2,000.00	1.0	\$2,000.00
1001	1.00	\$2,000.00	1.0	\$25,000,000.00

Item	Supplies / Services	Estimated Quantity	Unit	Unit Price	Amount
	Base Ordering Period 17 July 25 - 16 July 2030 The contractor shall perform maintenance, repair, and minor construction IAW Attachment 1, Western-Range Operational Ordering				

0001	Contract for Infrastructure Enhancement (WOOKIE) Multiple Award Construction Contract (MACC) Statement of Work, and as identified by other specific specifications/work statements in each task order issued against the contract. SBA Requirement Number: 0914/17/702272/01 Product Service Code: Z2JZ Pricing Arrangement: Firm Fixed Price	125	Job		
0002	WOOKIE MACC Minimum Guarantee -- The contractor shall attend the pre-performance construction meeting following contract award. Date and time of meeting are to be determined and will be coordinated with all awardees. SBA Requirement Number: 0914/17/702272/01 Product Service Code: Z2JZ Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 1001	Option 17 July 2030 - 16 July 2032 The contractor shall perform maintenance, repair, and minor construction IAW Attachment 1, Western-Range Operational Ordering Contract for Infrastructure Enhancement (WOOKIE) Multiple Award Construction Contract (MACC) Statement of Work, and as identified by other specific specifications/work statements in each task order issued against the contract. SBA Requirement Number: 0914/17/702272/01 Product Service Code: Z2JZ Pricing Arrangement: Firm Fixed Price	50	Job		

Section C - Description/Specifications/Statement of Work

Requirements

See Statement of Work in Section J.

Section D - Packaging and Marking

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Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-12	Inspection of Construction.	Aug 1996		
52.246-16	Responsibility for Supplies.	Apr 1984		
Overall Contract Inspection/Acceptance Locations				
0001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) for Acceptance/Inspection criteria. DoDAAC: FA4610 CountryCode: USA FA4610 30 CONS PK ADMINISTRATIVE ONLY NO REQUISITIONS, 1515 ICELAND AVE RM 150 VANDENBERG SFB, CA 93437-5212 UNITED STATES			
0002	Inspection and Acceptance Location Both Destination Instructions: Contractor shall attend a Pre-Performance Construction Conference to discuss Vandenberg Space Force Base specifics and general Western Operational Ordering Contract for Infrastructure Enhancement (WOOKIE) Multiple Award Construction Contract (MACC) requirements. DoDAAC: FA4610 CountryCode: USA FA4610 30 CONS PK ADMINISTRATIVE ONLY NO REQUISITIONS, 1515 ICELAND AVE RM 150 VANDENBERG SFB, CA 93437-5212 UNITED STATES Alyson Kolding Email: alyson.kolding@spaceforce.mil Telephone: (805) 606-2164			

Section F - Deliveries or Performance

Overall Contract Delivery Period

Line Item	Delivery Schedule	Estimated Quantity	Address and POC
0001	Period of Performance From 17 Jul 2025 To 16 Jul 2030	125 Job	Place of Performance DoDAAC: F4D3D9 CountryCode: USA F4D3D9 30 CES CEI AF BPN NO MLSBLS PROC CP 8056063890, 1172 ICELAND AVE BLDG 11433 VANDENBERG SFB, CA 93437-5000 UNITED STATES Jordan Hampton Email: jordan.hampton@spaceforce.mil Telephone: (805) 606-6675
0002	Delivery Schedule From date of lead time event to completion of performance 30 Calendar Days Delivery Schedule Period of Performance From 17 Jul 2025 To 16 Aug 2025	1 Job	Place of Performance DoDAAC: FA4610 CountryCode: USA FA4610 30 CONS PK ADMINISTRATIVE ONLY NO REQUISITIONS, 1515 ICELAND AVE RM 150 VANDENBERG SFB, CA 93437-5212 UNITED STATES Alyson Kolding Email: alyson.kolding@spaceforce.mil Telephone: (805) 606-2164
Option Line Item 1001	Period of Performance From 17 Jul 2030 To 16 Jul 2032	50 Job	Place of Performance DoDAAC: F4D3D9 CountryCode: USA F4D3D9 30 CES CEI AF BPN NO MLSBLS PROC CP 8056063890, 1172 ICELAND AVE BLDG 11433 VANDENBERG SFB, CA 93437-5000 UNITED STATES Jordan Hampton Email: jordan.hampton@spaceforce.mil Telephone: (805) 606-6675

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.247-34	F.o.b. Destination.	Nov 1991		

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.236-7000	Modification Proposals--Price Breakdown.	Dec 1991		

FAR Clauses Incorporated by Full Text

52.232-10 **Payments under Fixed-Price Architect-Engineer Contracts.** **(Apr 2010)**

As prescribed in 32.111(c)(1), insert the following clause:

Payments under Fixed-Price Architect-Engineer Contracts (Apr 2010)

(a) Estimates shall be made monthly of the amount and value of the work and services performed by the Contractor under this contract which meet the standards of quality established under this contract. The estimates, along with any supporting data required by the Contracting Officer, shall be prepared by the Contractor and submitted along with its voucher.

(b) After receipt of each substantiated voucher, the Government shall pay the voucher as approved by the Contracting Officer or authorized representative. The Contracting Officer shall require a withholding from amounts due under paragraph (a) of this clause of up to 10 percent only if the Contracting Officer determines that such a withholding is necessary to protect the Government's interest and ensure satisfactory completion of the contract. The amount withheld shall be determined based upon the Contractor's performance record under this contract. Whenever the Contracting Officer determines that the work is substantially complete and that the amount retained is in excess of the amount adequate for the protection of the Government, the Contracting Officer shall release the excess amount to the Contractor.

(c) Upon satisfactory completion by the Contractor and final acceptance by the Contracting Officer of all the work done by the Contractor under the "Statement of Architect-Engineer Services", the Contractor will be paid the unpaid balance of any money due for work under the statement, including all withheld amounts.

(d) Before final payment under the contract, or before settlement upon termination of the contract, and as a condition precedent thereto, the Contractor shall execute and deliver to the Contracting Officer a release of all claims against the Government arising under or by virtue of this contract, other than any claims that are specifically excepted by the Contractor from the operation of the release in amounts stated in the release.

(e) Notwithstanding any other provision in this contract, and specifically paragraph (b) of this clause, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(End of clause)

52.236-22 **Design Within Funding Limitations.** **(Apr 1984)**

As prescribed in 36.609-1(c), insert the following clause:

Design Within Funding Limitations (Apr 1984)

(a) The Contractor shall accomplish the design services required under this contract so as to permit the award of a contract, using standard Federal Acquisition Regulation procedures for the construction of the facilities designed at a price that does not exceed the estimated construction contract price as set forth in paragraph (c) of this clause. When bids or proposals for the construction contract are received that exceed the estimated price, the contractor shall perform such redesign and other services as are necessary to permit contract award within the funding limitation. These additional services shall be performed at no increase in the price of this contract. However, the Contractor shall not be required to perform such additional services at no cost to the Government if the unfavorable bids or proposals are the result of conditions beyond its reasonable control.

(b) The Contractor will promptly advise the Contracting Officer if it finds that the project being designed will exceed or is likely to exceed the funding limitations and it is unable to design a usable facility within these limitations. Upon receipt of such information, the Contracting Officer will review the Contractor's revised estimate of construction cost. The Government may, if it determines that the estimated construction contract price set forth in this contract is so low that award of a construction contract not in excess of such estimate is improbable, authorize a change in scope or materials as required to reduce the estimated construction cost to an amount within the estimated construction contract price set forth in paragraph (c) of this clause, or the Government may adjust such estimated construction contract price. When bids or proposals are not solicited or are unreasonably delayed, the Government shall prepare an estimate of constructing the design submitted and such estimate shall be used in lieu of bids or proposals to determine compliance with the funding limitation.

(c) The estimated construction contract price for the project described in this contract is will be identified on each individual task order.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.**(Jan 2023)**

As prescribed in 232.7004(b), use the following clause:

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

CONSTRUCTION PAYMENT/FACILITIES MANAGEMENT INVOICE

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>See individual task order</u>
Issue By DoDAAC	<u>FA4610</u>
Admin DoDAAC	<u>FA4610</u>

Inspect By DoDAAC	<u>FA4610</u>
Ship To Code	<u>FA4610</u>
Ship From Code	<u>KTR CAGE CODE</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>FA4610</u>
Service Acceptor (DoDAAC)	<u>FA4610</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>CONTRACTING OFFICER DODAAC FA4610</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

See individual task orders.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

1.0 ON-RAMPING:

1.1 The Government, at its sole discretion, may choose to On-Ramp any number of Indefinite-Delivery, Indefinite-Quantity (IDIQ) contracts at any time during the term of the Western-Range Operational Ordering Contract for Infrastructure Enhancement (WOOKIE) Multiple Award Construction Contract (MACC) IDIQ contract:

1.1.1 to ensure an adequate number of awardees are available to provide the level of effort and competition needed to support the program,

1.1.2 to replace poor performing IDIQ awardees,

1.1.3 to replace IDIQ awardees who fail to comply with the WOOKIE MACC program requirements such as proposing on all fair opportunity proposal requests, or

1.1.4 when the Contracting Officer (CO) determines it is in the Government's best interest.

1.2 Upon contract award, a maximum of three (3) WOOKIE MACC IDIQ contracts will be awarded with an effective date of "To Be Determined (TBD)" for "On-Ramping" purposes. However, the Government reserves the right to award more, less, or no contracts at all, if determined to be in the best interest of the Government. The minimum guarantee for any TBD IDIQ will be issued upon completion of the bilateral modification described in Method 1 paragraph b below. The Government also reserves the right to on-ramp additional contractors during the life of this IDIQ contract by using one (1) of the following methods:

1.3 Method 1:

1.3.1 The Government will select the Highest Technically Rated Offerors (HTRO) with a Fair and Reasonable Price TBD IDIQ awardees at time of initial proposal evaluation. TBD IDIQ awardee(s) must be an active participant in the SBA's 8(a) program to be considered eligible for on-ramping purposes.

1.3.2 As described in FAR Part 9.104 and in Section M of the solicitation, the Government will conduct a contractor responsibility determination annually, at a minimum and reserves the right to conduct another responsibility determination prior to on-ramping a TBD IDIQ awardee. If determined responsible, the Government will bilaterally modify the TBD effective date of the TBD awardee to activate it as of the modification date, or an agreed upon date by both parties.

1.3.2.1 If a TBD IDIQ awardee is found non-responsible, the CO will comply with FAR 19.6, Certificates of Competency and Determinations of Responsibility. TBD IDIQ awardees determined to be non-responsible may be terminated upon SBA concurrence.

1.3.2.2 If the TBD IDIQ awardee does not accept the Government's bilateral modification action to make the IDIQ contract effective, the Government will off-ramp that TBD IDIQ awardee and the next highest-rated TBD IDIQ awardee will be considered for on-ramping.

1.3.3 On-Ramp IDIQ contracts will be made effective under the originally awarded WOOKIE MACC IDIQ terms and conditions. If any adjustments need to be made to the terms and conditions (e.g., to account for any contract modifications), the Government will issue a bilateral modification to the newly effective IDIQ contract making it consistent with the existing IDIQ contracts.

1.3.4 Within 30 days, the Government will notify all existing IDIQ awardee(s) of any on-ramped contractor(s).

1.3.5 The newly on-ramped effective IDIQ awardee will immediately be able to compete for task orders. The overall contract ceiling and contract length will not be extended for newly on-ramped effective IDIQ awardees.

1.4 Method 2:

1.4.1 If for any of the reasons stated in the On-Ramping procedures above occur, the Government may resolicit this requirement by reopening competition to unsuccessful awardees, contractors off-ramped in accordance with 2.1.4 below, and/or other interested parties. This could happen at any time during the term of the WOOKIE MACC IDIQ contract to on-ramp new awardees utilizing the same evaluation criteria used in the initial WOOKIE MACC awards.

1.4.2 When a re-competition to on-ramp a new contractor(s) is determined to be in the best interest of the Government, the Government will advertise this information on the System for Award Management (SAM) website at <https://www.sam.gov/>. Current effective IDIQ awardees will not need to re-compete. Any contractor that has been off-ramped from this contract will not be eligible to re-compete for potential on-ramping under this method.

1.4.3 Within 30 days, the Government will notify all existing IDIQ awardee(s) of any on-ramped contractor(s).

1.4.4 New WOOKIE MACC IDIQ awardee(s) will compete with the existing WOOKIE MACC IDIQ awardees for all task orders (excluding the need to meet the minimum guarantee amount). The overall contract ceiling and contract length will not be extended for new on-ramp effective IDIQ awardees.

2.0 OFF-RAMPING:

2.1 While it is the Government's intent to maintain a strategic relationship with IDIQ contractors for the duration of the WOOKIE MACC, the Government may, at its sole discretion, choose to off-ramp an IDIQ awardee at any time during the term of the WOOKIE MACC IDIQ contract:

2.1.1 to replace IDIQ awardees with poor performance (e.g., late performance or being assessed liquidated damages on task orders, overall performance assessment rating of Marginal or Unsatisfactory in the Contractor Performance Assessment Reporting System (CPARS), unresponsiveness to warranty work, failure to provide responsive customer service, unsafe site conditions, etc.),

2.1.2 to replace IDIQ awardees within who to comply with WOOKIE MACC program requirements such as proposing on all fair opportunity proposal requests

2.1.3 if the TBD IDIQ awardee does not accept the Government's bilateral modification action to make the IDIQ contract effective, or

2.1.4 as determined to be in the best interest of the Government.

2.2 The Government intends to review annually, at the anniversary date of the contract award, the overall performance of the effective IDIQ contract holders. Following the review, the Government reserves the right to off-ramp contractors during the life of this IDIQ contract by using one (1) of the following approaches: 1) termination in accordance with FAR Part 49, or 2) by not exercising an option in accordance with FAR Part 17.

2.3 For effective IDIQ awardees where the Government decides not to exercise the option, the Government will provide a 30-calendar day written notice of its intention to off-ramp. If the Government determines an effective IDIQ awardee will be off-ramped, the effective IDIQ awardee will not be allowed, as of that date, to actively participate in upcoming task order proposal requests. However, the effective IDIQ awardee will be required to complete all task orders awarded prior to the

off-ramp determination date. For TBD awardees, no written notice will be given.

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment.	Nov 2021		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020		
52.219-8	Utilization of Small Business Concerns.	Feb 2024		
52.219-13	Notice of Set-Aside of Orders.	Mar 2020		
52.222-3	Convict Labor.	Jun 2003		
52.222-6	Construction Wage Rate Requirements.	Aug 2018		
52.222-7	Withholding of Funds.	May 2014		
52.222-8	Payrolls and Basic Records.	Jul 2021		
52.222-9	Apprentices and Trainees.	Jul 2005		
52.222-9	Apprentices and Trainees. (DEVIATION 2025-O0003)	Jul 2005	Deviation 2025-O0003	Mar 2025
52.222-10	Compliance with Copeland Act Requirements.	Feb 1988		
52.222-11	Subcontracts (Labor Standards).	May 2014		
52.222-12	Contract Termination-Debarment.	May 2014		
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	May 2014		
52.222-14	Disputes Concerning Labor Standards.	Feb 1988		
52.222-15	Certification of Eligibility.	May 2014		
52.222-30	Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Method).	Aug 2018		
52.222-35	Equal Opportunity for Veterans.	Jun 2020		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.222-54	Employment Eligibility Verification.	May 2022		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026.	Jan 2022		
52.222-62	Paid Sick Leave Under Executive Order 13706.	Jan 2022		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-21	Foams.	May 2024		
52.223-23	Sustainable Products and Services.	May 2024		
52.224-3	Privacy Training.	Jan 2017		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-4	Patent Indemnity-Construction Contracts.	Dec 2007		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-17	Interest.	May 2014		
52.232-23	Assignment of Claims.	May 2014		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.236-2	Differing Site Conditions.	Apr 1984		
52.236-3	Site Investigation and Conditions Affecting the Work.	Apr 1984		
52.236-5	Material and Workmanship.	Apr 1984		
52.236-6	Superintendence by the Contractor.	Apr 1984		

52.236-7	Permits and Responsibilities.	Nov 1991		
52.236-8	Other Contracts.	Apr 1984		
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.	Apr 1984		
52.236-10	Operations and Storage Areas.	Apr 1984		
52.236-11	Use and Possession Prior to Completion.	Apr 1984		
52.236-12	Cleaning Up.	Apr 1984		
52.236-13	Accident Prevention.	Nov 1991		
52.236-15	Schedules for Construction Contracts.	Apr 1984		
52.236-17	Layout of Work.	Apr 1984		
52.236-21	Specifications and Drawings for Construction.	Feb 1997		
52.236-23	Responsibility of the Architect-Engineer Contractor.	Apr 1984		
52.236-24	Work Oversight in Architect-Engineer Contracts.	Apr 1984		
52.236-25	Requirements for Registration of Designers.	Jun 2003		
52.242-13	Bankruptcy.	Jul 1995		
52.242-14	Suspension of Work.	Apr 1984		
52.243-4	Changes.	Jun 2007		
52.244-4	Subcontractors and Outside Associates and Consultants (Architect-Engineer Services).	Aug 1998		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	Jan 2025	Deviation 2025-O0003	Mar 2025
52.247-5	Familiarization with Conditions.	Apr 1984		
52.247-15	Contractor Responsibility for Loading and Unloading.	Apr 1984		
52.247-68	Report of Shipment (REPSHIP).	Feb 2006		
52.249-4	Termination for Convenience of the Government (Services) (Short Form).	Apr 1984		
52.249-7	Termination (Fixed-Price Architect-Engineer).	Apr 1984		
52.249-10	Default (Fixed-Price Construction).	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Jun 2023		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.216-7010	Postaward Debriefings for Task Orders and Delivery Orders.	Dec 2022		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7004	Drug-Free Work Force.	Sep 1988		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7000	Non-Estoppel	Oct 1966		
252.227-7022	Government Rights (Unlimited).	Mar 1979		
252.227-7033	Rights in Shop Drawings.	Apr 1966		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.236-7005	Airfield Safety Precautions.	Dec 1991		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.204-1 Approval of Contract. (Dec 1989)

As prescribed in 4.103 , insert the following clause:

Approval of Contract (Dec 1989)

This contract is subject to the written approval of the Contracting Officer and shall not be binding until so approved.

(End of clause)

52.211-10 Commencement, Prosecution, and Completion of Work. (Apr 1984)

As prescribed in 11.404(b), insert the following clause in solicitations and contracts when a fixed-price construction contract is contemplated. The clause may be changed to accommodate the issuance of orders under indefinite-delivery contracts for construction.

Commencement, Prosecution, and Completion of Work (Apr 1984)

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than dates indicated within each task order. The time stated for completion shall include final cleanup of the premises.

(End of clause)

52.211-12 Liquidated Damages-Construction.

(Sep 2000)

As prescribed in 11.503(b), insert the following clause in solicitations and contracts:

Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of amounts will be identified on each task order if applicable for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.216-18 Ordering.

(Aug 2020)

As prescribed in 16.506(a), insert the following clause:

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 17 July 2025 through 16 January 2033.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.

(Oct 1995)

As prescribed in 16.506(b), insert a clause substantially the same as follows:

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$2,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$25,000,000.00;

(2) Any order for a combination of projects in excess of \$25,000,000.00; or

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 14 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity.

(Oct 1995)

As prescribed in 16.506(e), insert the following clause:

Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 12 months after the completion of the period of performance of the final task order.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

As prescribed in 17.208(g), insert a clause substantially the same as the following:

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 7 years and 6 months.

(End of clause)

52.219-14 Limitations on Subcontracting.

(Oct 2022)

As prescribed in 19.507(e), insert the following clause:

Limitations on Subcontracting (Oct 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are-

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are-

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[X] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-17 Section 8(a) Award.

(Oct 2019)

As prescribed in 19.811-3(c), insert the following clause:

Section 8(a) Award (Oct 2019)

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1) To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section 8(a) of the Small Business Act, as amended (15 U.S.C. 637(a)).

(2) Except for novation agreements, delegates to the 30th Contracting Squadron the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify the 30th Contracting Squadron's Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the cognizant Contracting Officer under the "Disputes" clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

52.219-28 Post-Award Small Business Program Rerepresentation.**(Feb 2024)**

As prescribed in 19.309(c)(1), insert the following clause:

Post-Award Small Business Program Rerepresentation (Feb 2024)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, when the Contracting Officer explicitly requires it for an order issued under a multiple-award contract.

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting office in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it is, is not a small business concern under NAICS Code assigned to contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it is, is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it is, is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that-

(i) It is, is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It is, is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-40 Notification of Employee Rights Under the National Labor Relations Act.

(Dec 2010)

As prescribed in 22.1605 , insert the following clause:

Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)

(a) During the term of this contract, the Contractor shall post an employee notice, of such size and in such form, and containing such content as prescribed by the Secretary of Labor, in conspicuous places in and about its plants and offices where employees covered by the National Labor Relations Act engage in activities relating to the performance of the contract, including all places where notices to employees are customarily posted both physically and electronically, in the languages employees speak, in accordance with 29 CFR 471.2 (d) and (f).

(1) Physical posting of the employee notice shall be in conspicuous places in and about the Contractor's plants and offices so that the notice is prominent and readily seen by employees who are covered by the National Labor Relations Act and engage in activities related to the performance of the contract.

(2) If the Contractor customarily posts notices to employees electronically, then the Contractor shall also post the required notice electronically by displaying prominently, on any website that is maintained by the Contractor and is customarily used for notices to employees about terms and conditions of employment, a link to the Department of Labor's website that contains the full text of the poster. The link to the Department's website, as referenced in (b)(3) of this section, must read, "Important Notice about Employee Rights to Organize and Bargain Collectively with Their Employers."

(b) This required employee notice, printed by the Department of Labor, may be-

(1) Obtained from the Division of Interpretations and Standards, Office of Labor-Management Standards, U.S. Department of Labor, 200 Constitution Avenue, NW., Room N-5609, Washington, DC 20210, (202) 693-0123, or from any field office of the Office of Labor-Management Standards or Office of Federal Contract Compliance Programs;

(2) Provided by the Federal contracting agency if requested;

(3) Downloaded from the Office of Labor-Management Standards Web site at <http://www.dol.gov/olms/regs/compliance/EO13496.htm>; or

(4) Reproduced and used as exact duplicate copies of the Department of Labor's official poster.

(c) The required text of the employee notice referred to in this clause is located at Appendix A, Subpart A, 29 CFR Part 471.

(d) The Contractor shall comply with all provisions of the employee notice and related rules, regulations, and orders of the Secretary of Labor.

(e) In the event that the Contractor does not comply with the requirements set forth in paragraphs (a) through (d) of this clause, this contract may be terminated or suspended in whole or in part, and the Contractor may be suspended or debarred in accordance with 29 CFR 471.14 and subpart 9.4. Such other sanctions or remedies may be imposed as are provided by 29 CFR part 471, which implements Executive Order 13496 or as otherwise provided by law.

(f) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (f), in every subcontract that exceeds \$10,000 and will be performed wholly or partially in the United States, unless exempted by the rules, regulations, or orders of the Secretary of Labor issued pursuant to section 3 of Executive Order 13496 of January 30, 2009, so that such provisions will be binding upon each subcontractor.

(2) The Contractor shall not procure supplies or services in a way designed to avoid the applicability of Executive Order 13496 or this clause.

(3) The Contractor shall take such action with respect to any such subcontract as may be directed by the Secretary of Labor as a means of enforcing such provisions, including the imposition of sanctions for noncompliance.

(4) However, if the Contractor becomes involved in litigation with a subcontractor, or is threatened with such involvement, as a result of such direction, the Contractor may request the United States, through the Secretary of Labor, to enter into such litigation to protect the interests of the United States.

(End of clause)

52.225-11 Buy American-Construction Materials under Trade Agreements.

(Nov 2023)

As prescribed in 25.1102(c), insert the following clause:

Buy American-Construction Materials under Trade Agreements (Nov 2023)

(a) *Definitions.* As used in this clause-

Caribbean Basin country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item-

- (1) Means any item of supply (including construction material) that is-
 - (i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in 46 U.S.C.40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

- (1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);
- (2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);
- (3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or
- (4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means-

- (1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-
 - (i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029.

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

Will be identified as applicable on task orders.

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(A)(2) of this clause.

(3) The procedures in paragraph (b)(4)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(4)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison (Information may be submitted as applicable during task order proposal submission)			
Construction Material Description	Unit of Measure	Quantity	Price (Dollars) *
Item1			
Foreign construction material	—	—	—

Domestic construction material	—	—	—
Item1			
Foreign construction material	—	—	—
Domestic construction material	—	—	—

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

(End of clause)

52.232-5 Payments under Fixed-Price Construction Contracts.

(May 2014)

As prescribed in 32.111(a)(5), insert the following clause:

Payments under Fixed-Price Construction Contracts (May 2014)

(a) Payment of price. The Government shall pay the Contractor the contract price as provided in this contract.

(b) Progress payments. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) Contractor certification. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

____ (Name)

____ (Title)

____ (Date)

(d) Refund of unearned amounts. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as

the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8 thday after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) Retainage. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) Title, liability, and reservation of rights. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) Reimbursement for bond premiums. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) Final payment. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C.3727 and 41 U.S.C.6305).

(i) Limitation because of undefinitized work. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) Interest computation on unearned amounts. In accordance with 31 U.S.C.3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.232-8 Discounts for Prompt Payment.

(Feb 2002)

As prescribed in 32.111(b)(1), insert the following clause:

Discounts for Prompt Payment (Feb 2002)

(a) Discounts for prompt payment will not be considered in the evaluation of offers. However, any offered discount will form a part of the award, and will be taken if payment is made within the discount period indicated in the offer by the offeror. As an alternative to offering a discount for prompt payment in conjunction with the offer, offerors awarded contracts may include discounts for prompt payment on individual invoices.

(b) In connection with any discount offered for prompt payment, time shall be computed from the date of the invoice. If the Contractor has not placed a date on the invoice, the due date shall be calculated from the date the designated billing office receives a proper invoice, provided the agency annotates such invoice with the date of receipt at the time of receipt. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or, for an electronic funds transfer, the specified payment date. When the discount date falls on a Saturday, Sunday, or legal holiday when Federal Government offices are closed and Government business is not expected to be conducted, payment may be made on the following business day.

(End of clause)

52.232-11 Extras.

(Apr 1984)

As prescribed in 32.111(c)(2), insert the following clause, appropriately modified with respect to payment due dates in accordance with agency regulations, in solicitations and contracts when a fixed-price supply contract, fixed-price service contract, or transportation contract is contemplated:

Extras (Apr 1984)

Except as otherwise provided in this contract, no payment for extras shall be made unless such extras and the price therefor have been authorized in writing by the Contracting Officer.

(End of clause)

52.232-26 Prompt Payment for Fixed-Price Architect-Engineer Contracts.

(Jan 2017)

As prescribed in 32.908(a), insert the following clause:

Prompt Payment for Fixed-Price Architect-Engineer Contracts (Jan 2017)

Notwithstanding any other payment terms in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer. Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(3) of this clause concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) Due date. The due date for making invoice payments is-

(i) For work or services completed by the Contractor, the later of the following two events:

(A) The 30th day after the designated billing office receives a proper invoice from the Contractor (except as provided in paragraph (a)(1)(iii) of this clause).

(B) The 30th day after Government acceptance of the work or services completed by the Contractor. For a final invoice, when the payment amount is subject to contract settlement actions (e.g., release of claims), acceptance is deemed to occur on the effective date of the settlement.

(ii) The due date for progress payments is the 30 thday after Government approval of Contractor estimates of work or services accomplished.

(iii) If the designated billing office fails to annotate the invoice or payment request with the actual date of receipt at the time of receipt, the payment due date is the 30 thday after the date of the Contractor's invoice or payment request, provided the designated billing office receives a proper invoice or payment request and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) Contractor's invoice. The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(2)(i) through (a)(2)(x) of this clause. If the invoice does not comply with these requirements, the designated billing office will return it within 7 days after receipt, with the reasons why it is not a proper invoice. When computing any interest penalty owed the Contractor, the Government will take into account if the Government notifies the Contractor of an improper invoice in an untimely manner.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of mailing or transmission.)

(iii) Contract number or other authorization for work or services performed (including order number and line item number).

(iv) Description of work or services performed.

(v) Delivery and payment terms (e.g., discount for prompt payment terms).

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(ix) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(x) Any other information or documentation required by the contract.

(3) Interest penalty. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(3)(i) through (a)(3)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment and there was no disagreement over quantity, quality, Contractor compliance with any contract term or condition, or requested progress payment amount.

(iii) In the case of a final invoice for any balance of funds due the Contractor for work or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(4) Computing penalty amount. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR Part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor, Government acceptance or approval is deemed to occur constructively as shown in paragraphs (a)(4)(i)(A) and (B) of this clause. If actual acceptance or approval occurs within the constructive acceptance or approval period, the Government will base the determination of an interest penalty on the actual date of acceptance or approval. Constructive acceptance or constructive approval requirements do not apply if there is a disagreement over quantity, quality, Contractor compliance with a contract provision, or requested progress payment amounts. These requirements also do not compel Government officials to accept work or services, approve Contractor estimates, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(A) For work or services completed by the Contractor, Government acceptance is deemed to occur constructively on the 7 thday after the Contractor completes the work or services in accordance with the terms and conditions of the contract.

(B) For progress payments, Government approval is deemed to occur on the 7th day after the designated billing office receives the Contractor estimates.

(ii) The prompt payment regulations at 5 CFR 1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes, and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(5) Discounts for prompt payment. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with 5 CFR Part 1315.

(6) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR Part 1315, in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of \$1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(6)(ii) of this clause, postmarked not later than 40 days after the date the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest is due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt, provided the demand is received on or before the 40 thday after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40 thday after payment was made.

(iii) The additional penalty does not apply to payments regulated by other Government regulations (e.g., payments under utility contracts subject to tariffs and regulation).

(b) Contract financing payments. If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.232-27 Prompt Payment for Construction Contracts.

(Jan 2017)

As prescribed in 32.908(b), insert the following clause:

Prompt Payment for Construction Contracts (Jan 2017)

Notwithstanding any other payment terms in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer. Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(3) concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) Types of invoice payments. For purposes of this clause, there are several types of invoice payments that may occur under this contract, as follows:

(i) Progress payments, if provided for elsewhere in this contract, based on Contracting Officer approval of the estimated amount and value of work or services performed, including payments for reaching milestones in any project.

(A) The due date for making such payments is 14 days after the designated billing office receives a proper payment request. If the designated billing office fails to annotate the payment request with the actual date of receipt at the time of receipt, the payment due date is the 14 thday after the date of the Contractor's payment request, provided the designated billing office receives a proper payment request and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(B) The due date for payment of any amounts retained by the Contracting Officer in accordance with the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, is as specified in the contract or, if not specified, 30 days after approval by the Contracting Officer for release to the Contractor.

(ii) Final payments based on completion and acceptance of all work and presentation of release of all claims against the Government arising by virtue of the contract, and payments for partial deliveries that have been accepted by the Government (e.g., each separate building, public work, or other division of the contract for which the price is stated separately in the contract).

(A) The due date for making such payments is the later of the following two events:

(1) The 30 thday after the designated billing office receives a proper invoice from the Contractor.

(2) The 30 thday after Government acceptance of the work or services completed by the Contractor. For a final invoice when the payment amount is subject to contract settlement actions (e.g., release of claims), acceptance is deemed to occur on the effective date of the contract settlement.

(B) If the designated billing office fails to annotate the invoice with the date of actual receipt at the time of receipt, the invoice payment due date is the 30 thday after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) Contractor's invoice. The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(2)(i) through (a)(2)(xi) of this clause. If the invoice does not comply with these requirements, the designated billing office must return it within 7 days after receipt, with the reasons why it is not a proper invoice. When computing any interest penalty owed the Contractor, the Government will take into account if the Government notifies the Contractor of an improper invoice in an untimely manner.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of mailing or transmission.)

(iii) Contract number or other authorization for work or services performed (including order number and line item number).

(iv) Description of work or services performed.

(v) Delivery and payment terms (e.g., discount for prompt payment terms).

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) For payments described in paragraph (a)(1)(i) of this clause, substantiation of the amounts requested and certification in accordance with the requirements of the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts.

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(xi) Any other information or documentation required by the contract.

(3) Interest penalty. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(3)(i) through (a)(3)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment and there was no disagreement over quantity, quality, Contractor compliance with any contract term or condition, or requested progress payment amount.

(iii) In the case of a final invoice for any balance of funds due the Contractor for work or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(4) Computing penalty amount. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR Part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor for payments described in paragraph (a)(1)(ii) of this clause, Government acceptance or approval is deemed to occur constructively on the 7 thday after the Contractor has completed the work or services in accordance with the terms and conditions of the contract. If actual acceptance or approval occurs within the constructive acceptance or approval period, the Government will base the determination of an interest penalty on the actual date of acceptance or approval. Constructive acceptance or constructive approval requirements do not apply if there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. These requirements also do not compel Government officials to accept work or services, approve Contractor estimates, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes, and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(5) Discounts for prompt payment. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR Part 1315.

(6) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR Part 1315 in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of \$1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(6)(ii) of this clause, postmarked not later than 40 days after the date the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest was due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt provided the demand is received on or before the 40 thday after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40 thday after payment was made.

(b) Contract financing payments. If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) Subcontract clause requirements. The Contractor shall include in each subcontract for property or services (including a material supplier) for the purpose of performing this contract the following:

(1) Prompt payment for subcontractors. A payment clause that obligates the Contractor to pay the subcontractor for satisfactory performance under its subcontract not later than 7 days from receipt of payment out of such amounts as are paid to the Contractor under this contract.

(2) Interest for subcontractors. An interest penalty clause that obligates the Contractor to pay to the subcontractor an interest penalty for each payment not made in accordance with the payment clause-

(i) For the period beginning on the day after the required payment date and ending on the date on which payment of the amount due is made; and

(ii) Computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(3) Subcontractor clause flowdown. A clause requiring each subcontractor to-

(i) Include a payment clause and an interest penalty clause conforming to the standards set forth in paragraphs (c)(1) and (c)(2) of this clause in each of its subcontracts; and

(ii) Require each of its subcontractors to include such clauses in their subcontracts with each lower-tier subcontractor or supplier.

(d) Subcontract clause interpretation. The clauses required by paragraph (c) of this clause shall not be construed to impair the right of the Contractor or a subcontractor at any tier to negotiate, and to include in their subcontract, provisions that-

(1) Retainage permitted. Permit the Contractor or a subcontractor to retain (without cause) a specified percentage of each progress payment otherwise due to a subcontractor for satisfactory performance under the subcontract without incurring any obligation to pay a late payment interest penalty, in accordance with terms and conditions agreed to by the parties to the subcontract, giving such recognition as the parties deem appropriate to the ability of a subcontractor to furnish a performance bond and a payment bond;

(2) Withholding permitted. Permit the Contractor or subcontractor to make a determination that part or all of the subcontractor's request for payment may be withheld in accordance with the subcontract agreement; and

(3) Withholding requirements. Permit such withholding without incurring any obligation to pay a late payment penalty if-

(i) A notice conforming to the standards of paragraph (g) of this clause previously has been furnished to the subcontractor; and

(ii) The Contractor furnishes to the Contracting Officer a copy of any notice issued by a Contractor pursuant to paragraph (d)(3)(i) of this clause.

(e) Subcontractor withholding procedures. If a Contractor, after making a request for payment to the Government but before making a payment to a subcontractor for the subcontractor's performance covered by the payment request, discovers that all or a portion of the payment otherwise due such subcontractor is subject to withholding from the subcontractor in accordance with the subcontract agreement, then the Contractor shall-

(1) Subcontractor notice. Furnish to the subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon ascertaining the cause giving rise to a withholding, but prior to the due date for subcontractor payment;

(2) Contracting Officer notice. Furnish to the Contracting Officer, as soon as practicable, a copy of the notice furnished to the subcontractor pursuant to paragraph (e)(1) of this clause;

(3) Subcontractor progress payment reduction. Reduce the subcontractor's progress payment by an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (e)(1) of this clause;

(4) Subsequent subcontractor payment. Pay the subcontractor as soon as practicable after the correction of the identified subcontract performance deficiency, and-

(i) Make such payment within-

(A) Sevendays after correction of the identified subcontract performance deficiency (unless the funds therefor must be recovered from the Government because of a reduction under paragraph (e)(5)(i)) of this clause; or

(B) Sevendays after the Contractor recovers such funds from the Government; or

(ii) Incur an obligation to pay a late payment interest penalty computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty;

(5) Notice to Contracting Officer. Notify the Contracting Officer upon-

(i) Reduction of the amount of any subsequent certified application for payment; or

(ii) Payment to the subcontractor of any withheld amounts of a progress payment, specifying-

(A) The amounts withheld under paragraph (e)(1) of this clause; and

(B) The dates that such withholding began and ended; and

(6) Interest to Government. Be obligated to pay to the Government an amount equal to interest on the withheld payments (computed in the manner provided in 31 U.S.C.3903(c)(1)), from the 8 thday after receipt of the withheld amounts from the Government until-

(i) The day the identified subcontractor performance deficiency is corrected; or

(ii) The date that any subsequent payment is reduced under paragraph (e)(5)(i) of this clause.

(f) Third-party deficiency reports-

(1) Withholding from subcontractor. If a Contractor, after making payment to a first-tier subcontractor, receives from a supplier or subcontractor of the first-tier subcontractor (hereafter referred to as a "second-tier subcontractor") a written notice in accordance with 40 U.S.C. 3133, asserting a deficiency in such first-tier subcontractor's performance under the contract for which the Contractor may be ultimately liable, and the Contractor determines that all or a portion of future payments otherwise due such first-tier subcontractor is subject to withholding in accordance with the subcontract agreement, the Contractor may, without incurring an obligation to pay an interest penalty under paragraph (e)(6) of this clause-

(i) Furnish to the first-tier subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon making such determination; and

(ii) Withhold from the first-tier subcontractor's next available progress payment or payments an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (f)(1)(i) of this clause.

(2) Subsequent payment or interest charge. As soon as practicable, but not later than 7 days after receipt of satisfactory written notification that the identified subcontract performance deficiency has been corrected, the Contractor shall-

(i) Pay the amount withheld under paragraph (f)(1)(ii) of this clause to such first-tier subcontractor; or

(ii) Incur an obligation to pay a late payment interest penalty to such first-tier subcontractor computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(g) Written notice of subcontractor withholding. The Contractor shall issue a written notice of any withholding to a subcontractor (with a copy furnished to the Contracting Officer), specifying-

(1) The amount to be withheld;

(2) The specific causes for the withholding under the terms of the subcontract; and

(3) The remedial actions to be taken by the subcontractor in order to receive payment of the amounts withheld.

(h) Subcontractor payment entitlement. The Contractor may not request payment from the Government of any amount withheld or retained in accordance with paragraph (d) of this clause until such time as the Contractor has determined and certified to the Contracting Officer that the subcontractor is entitled to the payment of such amount.

(i) Prime-subcontractor disputes. A dispute between the Contractor and subcontractor relating to the amount or entitlement of a subcontractor to a payment or a late payment interest penalty under a clause included in the subcontract pursuant to paragraph (c) of this clause does not constitute a dispute to which the Government is a party. The Government may not be interpleaded in any judicial or administrative proceeding involving such a dispute.

(j) Preservation of prime-subcontractor rights. Except as provided in paragraph (i) of this clause, this clause shall not limit or impair any contractual, administrative, or judicial remedies otherwise available to the Contractor or a subcontractor in the event of a dispute involving late payment or nonpayment by the Contractor or deficient subcontract performance or nonperformance by a subcontractor.

(k) Non-recourse for prime contractor interest penalty. The Contractor's obligation to pay an interest penalty to a subcontractor pursuant to the clauses included in a subcontract under paragraph (c) of this clause shall not be construed to be an obligation of the Government for such interest penalty. A cost-reimbursement claim may not include any amount for reimbursement of such interest penalty.

(l) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.236-4 Physical Data. (Apr 1984)

As prescribed in 36.504 , insert the following clause in solicitations and contracts when a fixed-price construction contract is contemplated and physical data (*e.g.*, test borings, hydrographic, weather conditions data) will be furnished or made available to offerors. All information to be furnished or made available to offerors before award that pertains to the performance of the work should be identified in the clause. When paragraphs are not applicable they may be deleted.

Physical Data (Apr 1984)

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by will be identified as available on each individual task order.

(b) Weather conditions will be identified as available on each individual task order.

(c) Transportation facilities will be identified as available on each individual task order.

(d) Other pertinent information will be identified as available on each individual task order.

(End of clause)

52.236-26 Preconstruction Conference. (Feb 1995)

As prescribed in 36.522 , insert the following clause:

Preconstruction Conference (Feb 1995)

If the Contracting Officer decides to conduct a preconstruction conference, the successful offeror will be notified and will be required to attend. The Contracting Officer's notification will include specific details regarding the date, time, and location of the conference, any need for attendance by subcontractors, and information regarding the items to be discussed.

(End of clause)

52.246-21 Warranty of Construction.

(Mar 1994)

As prescribed in 46.710(e)(1), the contracting officer may insert a clause substantially as follows in solicitations and contracts when a fixed-price construction contract (see 46.705 (c)) is contemplated, and the use of a warranty clause has been approved under agency procedures:

Warranty of Construction (Mar 1994)

(a) In addition to any other warranties in this contract, the Contractor warrants, except as provided in paragraph (i) of this clause, that work performed under this contract conforms to the contract requirements and is free of any defect in equipment, material, or design furnished, or workmanship performed by the Contractor or any subcontractor or supplier at any tier.

(b) This warranty shall continue for a period of 1 year from the date of final acceptance of the work. If the Government takes possession of any part of the work before final acceptance, this warranty shall continue for a period of 1 year from the date the Government takes possession.

(c) The Contractor shall remedy at the Contractor's expense any failure to conform, or any defect. In addition, the Contractor shall remedy at the Contractor's expense any damage to Government-owned or controlled real or personal property, when that damage is the result of-

(1) The Contractor's failure to conform to contract requirements; or

(2) Any defect of equipment, material, workmanship, or design furnished.

(d) The Contractor shall restore any work damaged in fulfilling the terms and conditions of this clause. The Contractor's warranty with respect to work repaired or replaced will run for 1 year from the date of repair or replacement.

(e) The Contracting Officer shall notify the Contractor, in writing, within a reasonable time after the discovery of any failure, defect, or damage.

(f) If the Contractor fails to remedy any failure, defect, or damage within a reasonable time after receipt of notice, the Government shall have the right to replace, repair, or otherwise remedy the failure, defect, or damage at the Contractor's expense.

(g) With respect to all warranties, express or implied, from subcontractors, manufacturers, or suppliers for work performed and materials furnished under this contract, the Contractor shall-

(1) Obtain all warranties that would be given in normal commercial practice;

(2) Require all warranties to be executed, in writing, for the benefit of the Government, if directed by the Contracting Officer; and

(3) Enforce all warranties for the benefit of the Government, if directed by the Contracting Officer.

(h) In the event the Contractor's warranty under paragraph (b) of this clause has expired, the Government may bring suit at its expense to enforce a subcontractor's, manufacturer's, or supplier's warranty.

(i) Unless a defect is caused by the negligence of the Contractor or subcontractor or supplier at any tier, the Contractor shall not be liable for the repair of any defects of material or design furnished by the Government nor for the repair of any damage that results from any defect in Government-furnished material or design.

(j) This warranty shall not limit the Government's rights under the Inspection and Acceptance clause of this contract with respect to latent defects, gross mistakes, or fraud.

(End of clause)

52.247-12 Supervision, Labor, or Materials.

(Apr 1984)

As prescribed in 47.207-5(b), insert a clause substantially as follows in solicitations and contracts for transportation or for transportation-related services when the contractor is required to furnish supervision, labor, or materials:

Supervision, Labor, or Materials (Apr 1984)

The Contractor shall furnish adequate supervision, labor, materials, supplies, and equipment necessary to perform all the services contemplated under this contract in an orderly, timely, and efficient manner.

(End of clause)

52.248-3 Value Engineering-Construction.

(Oct 2020)

As prescribed in 48.202, insert the following clause:

Value Engineering-Construction (Oct 2020)

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any instant contract savings realized from accepted VECP's, in accordance with paragraph (f) of this clause.

(b) *Definitions.* "Collateral costs," as used in this clause, means agency costs of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistic support. The term does not include the normal administrative costs of processing the VECP.

Instant contract savings, as used in this clause, means the estimated reduction in Contractor cost of performance resulting from acceptance of the VECP, minus allowable Contractor's development and implementation costs, including subcontractors' development and implementation costs (see paragraph (h) of this clause).

Value engineering change proposal (VECP) means a proposal that-

- (1) Requires a change to this, the instant contract, to implement; and
- (2) Results in reducing the contract price or estimated cost without impairing essential functions or characteristics; *provided,* that it does not involve a change-
 - (i) In deliverable end item quantities only; or
 - (ii) To the contract type only.

(c) *VECP preparation.* As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (7) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

- (1) A description of the difference between the existing contract requirement and that proposed, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, and the effect of the change on the end item's performance.
- (2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.
- (3) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under paragraph (h) of this clause.
- (4) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.
- (5) A prediction of any effects the proposed change would have on collateral costs to the agency.
- (6) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.
- (7) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission.* The Contractor shall submit VECP's to the Resident Engineer at the worksite, with a copy to the Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause. The Contracting Officer may accept the VECP, even though an agreement on price reduction has not been reached, by issuing the Contractor a notice to proceed with the change. Until a notice to proceed is issued or a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) Sharing-

(1) *Rates.* The Government's share of savings is determined by subtracting Government costs from instant contract savings and multiplying the result by-

- (i) 45 percent for fixed-price contracts; or
- (ii) 75 percent for cost-reimbursement contracts.

(2) *Payment.* Payment of any share due the Contractor for use of a VECP on this contract shall be authorized by a modification to this contract to-

- (i) Accept the VECP;
- (ii) Reduce the contract price or estimated cost by the amount of instant contract savings; and

(iii) Provide the Contractor's share of savings by adding the amount calculated to the contract price or fee.

(g) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount by 20 percent of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer is the sole determiner of the amount of collateral savings.

(h) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract of \$75,000 or more and may include one in subcontracts of lesser value. In computing any adjustment in this contract's price under paragraph (f) of this clause, the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs clearly resulting from a VECP accepted by the Government under this contract, but shall exclude any value engineering incentive payments to a subcontractor. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; *provided*, that these payments shall not reduce the Government's share of the savings resulting from the VECP.

(i) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering-Construction clause of contract will be identified on each individual task order, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

As prescribed in 52.107(b), insert the following clause:

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/browse/index/far>

DFARS: <https://www.acquisition.gov/dfars>

DAFFARS: <https://www.acquisition.gov/daffars>

(End of clause)

52.252-4 Alterations in Contract.

(Apr 1984)

As prescribed in 52.107(d), insert the following clause in solicitations and contracts in order to revise or supplement, as necessary, other parts of the contract, or parts of the solicitation that apply after contract award, except for any clause authorized for use with a deviation. Include clear identification of what is being altered.

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

None

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

As prescribed in 52.107(f), insert the following clause in solicitations and contracts that include any FAR or supplemental clause with an authorized deviation. Whenever any FAR or supplemental clause is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the clause when it is used without deviation, include regulation name for any supplemental clause, except that the contracting officer shall insert "(DEVIATION)" after the date of the clause.

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Federal Acquisition Regulation (FAR) or Department of Defense Federal Acquisition Regulation Supplement (DFARS) (48 CFR Chapter 1 or Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

As prescribed in 211.274-5(a), use the following clause:

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) Definitions. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to

provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparable as specified in Attachment Number _____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number _____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only; original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

(8) Current part number (optional and only if not the same as the original part number).**

(9) Current part number effective date (optional and only if current part number is used).**

(10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.236-7001 Contract Drawings and Specifications.

(Aug 2000)

As prescribed in 236.570(a), use the following clause:

CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

- (1) Check all drawings furnished immediately upon receipt;
- (2) Compare all drawings and verify the figures before laying out the work;
- (3) Promptly notify the Contracting Officer of any discrepancies;
- (4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and
- (5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

- (1) Large-scale drawings shall govern small-scale drawings; and
- (2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Will be identified as available on each individual task order.

Title	File		Drawing No.
—	—		—

(End of clause)

Supplemental Clauses Incorporated by Full Text

5352.201-9101 Ombudsman

(Jul 2023)

(a) An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.

(b) Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).

(c) If resolution cannot be made by the contracting officer, the interested party may contact the ombudsman, <>. Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/DRU/SMC ombudsman level, may be brought by the interested party for further consideration to the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.

(d) The ombudsman has no authority to render a decision that binds the agency.

(e) Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

(End of clause)

Section J - List of Attachments

*The Construction Wage Rate Requirements Statute Wage Determinations are for reference only and the most current wage determinations will be included at time of award in accordance with Statement of Work (SOW) paragraph 3.

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item
01	WOOKIE MACC_SOW_Final_20250219	Statement of Work		19 Feb 2025	
02	ATT 02_Volume I_Executive Summary Sheet_20241024	Executive Summary Sheet		24 Oct 2024	
03	ATT 03_Volume I_Price Proposal Template_20250127	Price Proposal Template		24 Jan 2025	
04	ATT 04_Volume II_Project Category Definitions_20241218	Project Category Definitions		18 Dec 2024	
05	ATT 05_Volume II_HTRO Self-Scoring Worksheet_20250227	HTRO Self-Scoring Worksheet		27 Feb 2025	
06	ATT 06_Volume II_Relevant Experience Project Template_20250227	Relevant Experience Project Template		27 Feb 2025	
07	ATT 07_SB Wage Determination_20241108	Wage Determination		08 Nov 2024	
08	ATT 08_Ventura Wage Determination_20241108	Wage Determination		08 Nov 2024	
09	ATT 09_Monterey & San Mateo Wage Determination_20250207	Wage Determination		07 Feb 2025	
10	ATT 10_AF Form 103	ATT 10_AF Form 103		18 Dec 2024	
11	ATT 11_Schedule Material Submittals	ATT 11_Schedule Material Submittals		18 Dec 2024	
12	ATT 12_Construction Cost Estimate Breakdown	ATT 12_Construction Cost Estimate Breakdown		18 Dec 2024	
13	ATT 13_01 00 00 General VSFB Specs	ATT 13_01 00 00 General VSFB Specs		12 Dec 2023	
14	ATT 14_01 57 20 Environmental Specs	ATT 14_01 57 20 Environmental Specs		22 May 2023	
15	ATT 15_VSFB CAD Standards_Aug 2019	ATT 15_VSFB CAD Standards_Aug 2019		01 Aug 2019	

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		

FAR Clauses Incorporated by Full Text

52.204-8 Annual Representations and Certifications. (DEVIATION 2025-O0003) (Jan 2025) Deviation 2025-O0003 (Mar 2025)

Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 236220.

(2) The small business size standard is \$45,000,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) Paragraph (d) applies.

[X] (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

- (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
- (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
- (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) [Reserved]
- (xv) [Reserved]
- (xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.
- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.
- (xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.
- (A) If the acquisition value is less than \$50,000, the basic provision applies.
 - (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.
 - (C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.
- (xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
- (xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.
- (xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.
- (2) The following representations or certifications are applicable as indicated by the Contracting Officer:
- [x] (i) 52.204-17, Ownership or Control of Offeror.
 - [x] (ii) 52.204-20, Predecessor of Offeror.
 - (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.

(v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

(vi) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Section L - Instructions, Conditions, and Notices to Offerors

PROPOSAL PREPARATION INSTRUCTION TO OFFERORS

L-1 GENERAL INSTRUCTIONS

1.0 General Instructions

1.0.1. This solicitation is being issued for the acquisition of the Western-Range Operational Ordering Contract for Infrastructure Enhancement Multiple Award Construction Contract (WOOKIE MACC) which will be utilized to execute a broad range of maintenance, repair and minor construction projects on real property at Vandenberg Space Force Base (VSFB), California, and VSFB remote locations. The remote locations for VSFB include, but are not limited to Oak Mountain, Vandenberg Village Antenna Farm, Pillar Point Air Force Station, Anderson Peak, Laguna Peak, Santa Ynez Peak, Naval Base Ventura County Point Hueneme, Naval Base Ventura County Point Mugu, and Orcutt Hill. The projects will include tasks in a variety of trades such as demolition, site work, excavation, cast-in-place concrete, masonry, structural steel, electrical, mechanical (including HVAC), painting, millwork, and other specialty and general contracting work. This competitive acquisition will utilize the source selection procedures in accordance with (IAW) Federal Acquisition Regulation (FAR) 15.3 as supplemented by the DoD Source Selection Procedures referenced in Defense Federal Acquisition Regulation Supplement (DFARS) 215.300 and the Department of the Air Force Federal Acquisition Regulation Supplement (DAFFARS) Mandatory Procedures 5315.3 to make an integrated assessment for a Highest Technically Rated Offeror with a Fair and Reasonable Price (HTRO) award decision.

1.0.2. The Government intends to award up to five (5) indefinite-delivery, indefinite-quantity (IDIQ) contracts firm-fixed-price (FFP) task orders to the highest technically rated offerors with fair and reasonable pricing IAW FAR 15.304(c). Proposals may only be submitted by 8(a) firms or joint ventures, registered in the North American Industrial Classification System Code (NAICS) of 236220, Commercial and Institutional Building Construction. The Period of Performance for the WOOKIE MACC includes a five (5) year base period and one (1) two (2) year option period. Awardees are required to recertify their 8(a) small business status prior to the completion of the fifth year of the contract IAW FAR 52.219-28.

1.0.3. This section provides general guidance for preparing proposals, as well as specific instructions on the format and content of the proposal. Throughout this section, the term "offeror" includes joint venture partners the contractor proposes to maintain throughout the entirety of the contract.

1.0.4. The offeror's proposal must include all data and information requested and must be submitted in accordance with these instructions. Any offeror who submits an incomplete package may be considered unacceptable. The offer shall be compliant with the requirements as stated in the Request for Proposal (RFP). A proposal that is sufficiently documented to support cost/price and technical requirements in a complete, orderly, and specific detailed manner will enable the Government to perform a thorough and fair evaluation. Non-compliance with the instructions and RFP may result in the Government being unable to substantiate ratings.

2.0 Type of Acquisition

This acquisition is a competitive 8(a) small business set-aside. For this acquisition, selection of the best value offeror(s) will be made using Highest Technically Rated Offeror with a Fair and Reasonable Price (HTRO) methodology. This solicitation will result in the award of up to five (5) IDIQ contracts. Proposals may only be submitted by Small Business Certified 8(a) Small Business firms or joint ventures listed under the 236220 NAICS.

3.0 Discrepancies and Ambiguities

If an offeror believes that the requirements in these instructions contain an error, omission, ambiguity, or are otherwise unsound, the offeror shall immediately notify the Contracting Officer (CO) in writing with supporting rationale No Later Than (NLT) ten (10) calendar days after the RFP release. The offeror is reminded that the Government intends to award this effort based on the initial proposal, as received, without discussions.

4.0 Mistakes

Mistakes in an offeror's proposal shall be handled in accordance with FAR 14.407-4 as referenced in FAR 15.508.

5.0 Postponement of Proposal Closing Date

If a determination is made to postpone a proposal closing date, an announcement of the determination shall be posted to the Government Point of Entry (GPE), <https://sam.gov/content/home> and, if practicable, before issuance of a formal RFP amendment otherwise communicated to prospective offerors.

6.0 Discussions

The Government intends to evaluate proposals and award contracts without discussions with offerors except clarifications as described in FAR 15.306(a). Therefore, the offeror's initial proposal should contain the offeror's best terms. When discussions or requests for revised offers are not conducted or requested by the Government, the prices identified in Section J, Attachment 03, Volume I Price Proposal Template shall be valid through the date in Block 13D of the SF 1442.

7.0 Contract Document

Sections K, L, and M apply to the solicitation phase only; therefore, they will not be a physical part of the resulting contract but remain in full force and effect and should be applicable.

8.0 Points of Contact (POC)

The POCs for this acquisition are the CO, Alyson R. Kolding and Contract Specialists (CS), Jennifer A. Paccioretti and Meghann Applebay. Written requests for clarification may be sent to the CO/CS at the group email address listed below. Address any questions or concerns to them using the following contact information:

WOOKIEMACC2025@groups.af.mil

30 CONS/PKA
1515 Iceland Ave Bldg. 8500
Vandenberg SFB, CA 93437

L-2 PROPOSAL PREPARATION INSTRUCTIONS

1.0 The proposal package must be completed, and an electronic or hard copy submission delivered to the POCs in Section L paragraph L-1 subparagraph 8.0, prior to the set due date of proposals, see Block 13A of the SF1442. Hard copy submissions shall comply with Section L paragraph L-2 subparagraph 1.6.2 and 1.6.5. Electronic copy submissions shall comply with Section L paragraph L-2 subparagraph 1.6.6.

1.1 Offerors are instructed to read the entire solicitation document, including all the attachments in Section J, and any subsequent solicitation amendments prior to submitting questions, preparing your offer, and submitting a proposal.

1.2 The Government will not reimburse offerors for any cost incurred for the preparation and submission of a proposal in response to this solicitation.

1.3 The proposal package must be completed and returned to the address in Block 7 of the SF 1442, prior to the time set for closing of proposals, see Block 13A of the SF 1442.

1.4 To assure timely and equitable evaluation of proposals, offerors must follow the instructions contained herein. Proposals must be complete, self-sufficient, and respond directly to the requirements of this solicitation; alternate proposals will not be accepted. Offeror's proposals shall be formatted into two (2) separate volumes:

Volume I - Executed Contract Documentation and Price Proposal
Volume II - Technical

1.5 The CO has determined there is a high probability of adequate price competition in this acquisition. Upon examination of the initial offers, the CO will review this determination and if, in the CO's determination, adequate price competition exists no additional cost information is expected to be requested and certification under FAR 15.406-2 will not be required. However, if at any time during this competition the contracting officer determines that adequate price competition no longer exists or if additional information is required to substantiate pricing; offerors may be required to submit information to the extent necessary for the CO to determine the reasonableness of the price.

1.6 Formatting shall be as follows:

1.6.1 *USE OF COMMERCIAL SYSTEMS TO TRANSMIT SOURCE SELECTION SENSITIVE INFORMATION:* To facilitate review and evaluation for this source selection the Government proposes to transmit data via commercial systems. Distributed material will be identified as source selection sensitive and distribution will be strictly limited to appropriate personnel and shall be encrypted per DAFFARS MP 5315.3 paragraph 1.4.2.2.3. Should any contractor object to their proprietary information being shared between source selection evaluators and advisors via commercial email as described above, please advise either the Contracting Specialists or the Contracting Officer using the contact information above.

1.6.2 *HAND-CARRIED PROPOSALS NOTICE:* Offerors are cautioned that VSFB has stringent visitor control procedures requiring individuals not affiliated with the installation to obtain a visitor pass and be cleared by the Government point of contact to be visited prior to entrance. A request must be received no later than **four (4) business days prior to entry** for an offeror to gain entrance onto VSFB. If within four (4) business days prior to the proposal due date and time, the offeror may try and schedule a day and time with the points of contact to pick up the proposal at the Visitor Center. It is possible that the points of contact may not be available to clear offerors for entrance, which may prohibit submission of hand-carried proposals; consequently, offerors electing to hand-carry their proposals for submittal just prior to closing time do so at their own risk.

1.6.3 Each volume shall contain a glossary of all abbreviations and acronyms used, with an explanation for each. The glossaries will not count against the page limitations.

1.6.4 Type face shall not be less than 11 point font, with 1" margins on all sides. Smaller, legible font size, no smaller than 6 point, may be used for charts and tables.

1.6.5 Hard copy volumes shall be submitted in three-ring, loose leaf binders permitting the volume to lie flat when open. Staples shall not be used to bind pages. If the binder used has protective sleeves on the covers or spine (including the exterior), the offeror should not insert anything in these protective sleeves. A cover sheet shall be included in each binder clearly identifying the company name, solicitation number, and volume number. The header of each page shall include the company name, solicitation number, and page number. See the table below for specific number of copies to be submitted and maximum number of pages permitted.

TITLE	# OF COPIES	MAXIMUM # OF PAGES
Volume I - Executed Contract Documentation & Price Proposal	(1) copy	No page limitation
Volume II - Technical	(1) copy	80 pages excluding the score sheet (No more than two (2) pages per Relevant Experience Project for a maximum of 30 projects.) *The appendix SOWs will not count against the 80 page count maximum.

1.6.6 Offerors may submit their proposals electronically through email or the Department of Defense (DoD) Secure Access File Exchange (SAFE) site. Offerors electing to submit their proposals through email are cautioned that the Government's email server may block emails it considers as potential security risks with no notice being provided to either the sender or the recipient. In addition, the server may block emails with large file attachments and it is therefore recommended that emails over 5MB in size be submitted through DoD SAFE. As such, offerors should only use approved file formats, .pdf, .docx, or .xlsx., and are strongly encouraged to follow up with the POCs to ensure their proposal package is received prior to exact time specified for the receipt of proposals. Offerors electing to use the DoD SAFE site shall request a drop-off link be sent to them at least one (1) business day but not more than seven (7) calendar days in advance of the proposal due date to ensure the Government has sufficient time to submit the request through the DoD SAFE site. Offerors are cautioned that files may take a significant amount of time to upload onto the DoD SAFE server and should not wait until the last minute to upload their proposal package.

1.6.7 The offeror should be sure to apply all appropriate markings on its proposal, including those prescribed in accordance with FAR 52.215-1(e), Restriction on disclosure and use of data, and FAR 3.104-4, Disclosure, Protection, and Marking of Contractor Bid or Proposal Information and Source Selection Information.

1.6.8 Documents submitted in response to this solicitation must be found acceptable and consistent with the following:

1.6.8.1 Requirements of the solicitation, and Government standards and regulations pertaining to the specification.

1.6.8.2 Evaluation Factors for Award in Section M of this solicitation.

1.6.8.3 Any limitation on the number of proposal pages. Pages exceeding the page limitations set forth in this section will be removed from the proposal and not read or evaluated.

1.6.9 The magnitude of construction in accordance with FAR 36.204, as supplemented, for the total WOOKIE MACC program for the five (5) year base period and one (1) two (2) year option is over \$500,000,000.00. The total program shall not exceed \$525,000,000.00. The estimated magnitude of the task orders will vary between task orders and will be identified on each task order request. Task orders will range in value from \$2,000.00 to \$25,000,000.00.

2.0 PROPOSAL SUBMISSION REQUIREMENTS

The minimum acceptable requirements and scored evaluation criteria under Volume I - Executed Contract Documentation & Price Proposal and Volume II - Technical are defined herein.

2.1 VOLUME I - EXECUTED CONTRACT DOCUMENTATION & PRICE PROPOSAL

To be eligible for award, the Offeror must adhere to the directions and submit the following information under Volume I - Executed Contract Documentation and Price Proposal.

2.1.1 Executive Summary Sheet

Offerors shall submit a summary about the company, including the company's CAGE code, SAM Unique Entity ID (UEI), small business categories, and identification of the name(s), email(s), and phone number(s) of the principal person(s) authorized to negotiate on behalf of and obligate the company.

2.1.2 Chapter 1 - SF 1442

Offerors shall submit a completed Standard Form (SF) 1442 - Solicitation, Offer, and Award. Offerors shall complete applicable blanks. In doing so, the offeror accedes to the contract terms and conditions as written in the RFP Sections A through J. These sections constitute the model contract.

2.1.2.1 The offeror's official legal name and address in Block 14 of the SF 1442 shall match the offeror's official legal name and address in System for Award Management (SAM) at <https://www.sam.gov>.

2.1.2.2 The offeror's official legal name and address in Block 14 of the SF 1442 will be the official mailing address used by the Government for letter correspondence, the official name and address under an awarded contract, and the official name and address under corresponding task order awards.

2.1.2.3 Acknowledge all amendments issued to the solicitation in Block 19 of the SF 1442.

2.1.2.4 The Name, Title, Signature and Date identified in Block 20a, 20b, and 20c of the SF 1442 shall be an authorized representative with authority to commit the offeror to all contractual obligations.

2.1.3 Chapter 2 - Section K

Offerors shall submit a completed Section K. Complete the representations, certifications, and acknowledgments. Section K shall be returned in its entirety.

2.1.4 Chapter 3 - Joint Venture Agreements

Joint ventures are allowable on competitive 8(a) small business set-asides; however, the joint venture agreement must be received by Small Business Administration (SBA) prior to proposal due date and approved before award of any resulting contract. If the offeror is contemplating a joint venture on this project, the offeror should advise, in writing, its assigned SBA Business Opportunity Specialist (BOS) as soon as possible. It also recommended that the agreement be submitted to the assigned SBA BOS as soon as practicable to ensure compliance with established regulations. Any corrections and/or changes needed can be made only when the BOS has had adequate time for a thorough review before the proposal due date. NO CORRECTIONS AND/OR CHANGES ARE ALLOWED AFTER TIME OF SUBMISSION OF PROPOSALS.

2.1.5 Chapter 4 - SBA Validation

Offerors shall provide a letter from the SBA showing proof of Section 8(a) status. Offerors who do not comply with this requirement shall be considered unacceptable and not eligible for award.

2.1.6 Chapter 5 - Contractor's License

Offeror must possess an active California General Contractor's License, "Class A" or "Class B", or equivalent license from a state with a reciprocity agreement with State of California, registered in the prime contractor's name; or must demonstrate a four (4) year history of experience in successfully completing multiple trade construction efforts. Multiple trade construction efforts are defined as projects which involve at least two (2) separate and distinct construction trades including but not limited to carpentry, plumbing, electrical, mechanical, painting, pipe fitting, sheet metal, welding, roofing, site work, site utilities, excavation, concrete, masonry, pavement repair, asbestos abatement, lead paint removal, security hardware installation, or demolition.

2.1.7 Chapter 6 - Bonding Capacity

Offerors shall provide a letter from their surety company, stating the offeror's bonding capacity. Bonding may be obtained from a surety listed in the Department of the Treasury Circular 570 list of approved surety companies (<http://www.fms.treas.gov/c570/>) or other security permitted by FAR Subpart 28.2, unless prohibited by law or regulation.

2.1.8 Chapter 7 - Price Proposal

In lieu of completing Section B of the SF 1442, offerors shall submit a completed Section J, Attachment 03, Volume I_Price Proposal Template.

2.1.8.1 Offerors shall enter their official legal name in the orange shaded cell in Row 2.

2.1.8.2 Offerors submitted Section J, Attachment 03, Volume I_Price Proposal Template shall identify fully burdened hourly labor rates for the offeror's Site Superintendent, Quality Control Manager, and Project Manager for fiscal year (FY) 2025 through FY 2032. These FYs will cover the five (5) year base and one (1) two (2) year option.

2.1.8.3 In the shaded gray cells in columns B, C, D, E, F, G, H, and I of the Section J, Attachment 03, Volume I_Price Proposal Template, Offerors shall enter fully burdened hourly labor rates for the offeror's Site Superintendent, Quality Control Manager, and Project Manager. All fully burdened hourly labor rates shall be rounded to two decimal places.

2.1.8.4 Fully burdened hourly labor rates are the total hourly labor rate for an employee including both the direct wages paid to an employee, but also the various indirect costs associated with employing a person in the business. These indirect costs include but are not limited to:

- Training/Employee Development
- Federal and state unemployment costs
- Federal and state payroll taxes

- Vacation and/or holiday and sick pay
- Employee Benefits (e.g. health or retirement plans)
- General Liability Insurance
- Worker's Compensation Insurance

The fully burdened hourly labor rate does not include profit or general business overhead costs such as administrative staff or home office operating costs.

2.2 VOLUME II - TECHNICAL

To be eligible for award, the offeror must adhere to the directions and submit the following information under Volume II - Technical.

2.2.1 Self-Scoring Worksheet

2.2.1.1 Offerors shall submit Section J, Attachment 05, Volume II_HTRO Self-Scoring Worksheet. No other format will be considered.

2.2.1.2 The Self-Scoring Worksheet reflects the scored evaluation criteria for six (6) categories:

- I. Relevant Experience Projects
- II. Number of Design-Build Projects as a Prime Contractor
- III. Experience in Complex Projects
- IV. Staffing
- V. Contractor Aggregate Bonding Capacity
- VI. Contractor California General Contractor's License

2.2.1.3 Offerors shall complete the orange shaded cells in row 2 and Columns C and E. For each scored evaluation criteria, read each description carefully in column C and fill in Column E by selecting the appropriate choice from the drop-down box or inputting an appropriate response. Do not leave any answer under column E blank. Offerors shall not alter any other rows, columns, or formulas within the Self-Scoring Worksheet. Column F will automatically calculate the offeror's score for each row and the overall total points scored. The offeror shall accurately rate itself using the scoring instructions for each element as described throughout this section, 2.2.1 Self-Scoring Worksheet of Section L.

2.2.1.4 The burden of proof to substantiate the offeror's self-rated score rests with the offeror. The proposal shall include evidence to support each proposed self-rated score. .

2.2.1.5 Offerors shall enter their official legal name in the orange cell in Row 2 of the Self-Scoring Worksheet.

2.2.1.6 For each individual Relevant Experience Project (REP), thirty (30) maximum, offerors shall enter the contract number, including the task order number if applicable, and its page number in Volume II in the orange cells in column C of the Self-Scoring Worksheet. If the offeror chooses not to submit a project for the REP section, the offeror shall enter N/A in column C and select "NO" from the drop down in column E. Offerors shall refer to Section J, Attachment 04, Volume II_Project Category Definitions for detailed descriptions of each of the ten (10) categories listed under Section I: Relevant Experience Projects on the Self-Scoring Worksheet.

For each REP on the Self-Scoring Worksheet, the offeror shall complete Section J, Attachment 06, Volume II_Relevant Experience Project Template. A total of thirty (30) maximum shall be submitted. Offeror's may include project SOWs as Appendix 1, Project Specific Statements of Work to Section J, Attachment 06, Volume II_Relevant Project Template. The appendix SOWs will not count against the 80 page count maximum.

All REPs identified on the Self-Scoring Worksheet shall directly correspond to the projects identified in Section J, Attachment 06, Volume II_Relevant Experience Project Template.

All REPs must have been completed with the offeror acting as the prime contractor and have had construction completed projects within the past five (5) years from the date of solicitation or must be more than 50% constructed by the proposal due date. Any REPs exceeding this time frame will not be considered for evaluation. In the case of joint ventures, the prime contractor on the REP may be either joint venture partner or the joint venture.

2.2.1.7 The same projects listed in Section I: Relevant Experience Projects section of the Self-Scoring Worksheet shall be utilized for the offeror's response to Section II: Number of Design-Build Projects as Prime Contractor and Section III: Experience in Complex Projects sections of the Self-Scoring Worksheet.

2.2.1.8 In Section II: Number of Design-Build Projects as the Prime Contractor of the Self-Scoring Worksheet, offerors shall select the number of design-build projects from Section I performed in each of the following locations: in California, in Santa Barbara County, with Santa Barbara County Air Pollution Control District, and CONUS/HI/AK US Military Bases. Projects not listed in Section I shall not be included in these numbers. Offerors shall only utilize the projects listed in Section I: Relevant Experience Projects to select the appropriate responses for Section II: Number of Design-Build Projects as a Prime Contractor. Projects that are performed at locations which fall under multiple options can be counted under each option. For example, a project performed at Edwards Air Force Base could count towards being performed in California and at a CONUS/HI/AK US Military Base.

2.2.1.8.1 Design-build projects are defined as projects where the prime contractor performed as the prime contractor for both the design phase and construction phase of a project. The design phase shall include completing a 100% design as defined in the WOOKIE MACC SOW and could have been done either internally by the prime contractor or through a subcontract with a firm that utilized registered architects or engineers in the preparation of the design.

2.2.1.8.2 Projects with the Santa Barbara County Air Pollution Control District are defined as projects which require compliance with permits issued by the Santa Barbara County Air Pollution Control District for Asbestos Remediation, or Emission Source installation, modification, or removal.

2.2.1.9 In Section III: Experience in Complex Projects as the Prime Contractor of the Self-Scoring Worksheet, offerors shall select the number of projects from Section I with five (5) or more tasks, four (4) or more tasks, and three (3) or more tasks. Offerors shall utilize the projects listed in Section I: Relevant Experience Projects to select the appropriate responses for Section III: Experience in Complex Projects. Projects shall only be included in the appropriate option. For example, a project with 6 tasks shall only be counted in the five (5) or more tasks and shall not count towards the "With 4 tasks" or "With 3 tasks" options. A task is defined as one of the engineered tasks listed in 2.2.1.9.1 through 2.2.1.9.4 below. Each task must involve the use of a registered engineer in the development of the construction effort.

2.2.1.9.1 Mechanical

HVAC
Interior Plumbing
Fire Suppression

2.2.1.9.2 Electrical

High or Medium Voltage Electrical Distribution/Transmission

Power Generation (either large scale or backup power systems)
 Interior or Facility Electrical
 Fire Alarm/Mass Notification Systems
 Electronic Security System for Secured Facilities in accordance with ICD 705 Specifications
 Communication Systems
 Lightning Protection Systems
 Military Supervisory Control and Data Acquisition (SCADA) Systems

2.2.1.9.3 Civil

Water Distribution or Sanitary Sewer Systems
 Stormwater Systems or Culverts
 Erosion Repair or Soil Stabilization
 Road or Pavement Engineered Construction
 Geotechnical
 Environmental Remediation
 Traffic and/or Transportation Engineering

2.2.1.9.4 Structural/Architectural

Seismic Renovations or Upgrades
 New Facility Designed Construction
 Engineered Facility Renovation
 Physical Security Systems for Secured Facilities in accordance with ICD 705 Specifications
 Entry Control Facilities

2.2.1.10 In Section IV: Staffing of the Self-Scoring Worksheet, offerors shall enter the number of qualified Project Managers, Superintendents, and Quality Control Managers currently on staff. Offerors shall provide substantiating documentation to support their claimed staffing meets the qualification requirements in the WOOKIE MACC Statement of Work paragraph 17.1. **This category will be capped at 3,750 points maximum.** In the case of joint ventures, staffing may be part of either joint venture partner.

2.2.1.11 In Section V: Contractor has an Aggregate Bonding Capacity of, offerors shall select the bonding capacity currently possessed from a drop-down of three (3) choices: Equal to \$60M but less than \$75M, Equal to or Greater Than \$75M but less than \$90M, or Equal to or Greater Than \$90M. Offerors shall provide substantiating documentation to support their selection. In the case of joint ventures, the bonding capacity shall be for the joint venture entity and not for the individual partners.

2.2.1.12 In Section VI: Contractor has a California General Contractor's License, offerors shall select yes or no from the drop-down for a Type A License and Type B License. Offerors shall provide substantiating documentation to support their selection. In the case of joint ventures, licenses may be held by either joint venture partner or by the joint venture.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Oct 2018		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024		
52.214-34	Submission of Offers in the English Language.	Apr 1991		
52.214-35	Submission of Offers in U.S. Currency.	Apr 1991		
52.222-5	Construction Wage Rate Requirements-Secondary Site of the Work.	May 2014		
52.236-28	Preparation of Proposals-Construction.	Oct 1997		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		

FAR Clauses Incorporated by Full Text

52.215-1 Instructions to Offerors-Competitive Acquisition. (Nov 2021)

As prescribed in 15.209(a), insert the following provision:

Instructions to Offerors-Competitive Acquisition (Nov 2021)

(a) *Definitions.* As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations*. If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1) Unless other methods (*e.g.*, electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show-

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals.

(i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date.* Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets *[insert numbers or other identification of sheets]*; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award.

(1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.216-1 Type of Contract.

(Apr 1984)

As prescribed in 16.105 , complete and insert the following provision:

Type of Contract (Apr 1984)

The Government contemplates award of a Indefinite Delivery/Indefinite Quantity contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest.

(Sep 2006)

As prescribed in 33.106 , insert the following provision:

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

30 CONS/PKA, Attn: Alyson R. Kolding
1515 Iceland Avenue Bldg 8500 Room 150
Vandenberg Space Force Base, CA 93437

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

As prescribed in 52.107(a), insert the following provision:

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/browse/index/far>

DFARS: <https://www.acquisition.gov/dfars>

DAFFARS: <https://www.acquisition.gov/daffars>

(End of provision)

52.252-3 Alterations in Solicitation.

(Apr 1984)

As prescribed in 52.107(c), insert the following provision in solicitations in order to revise or supplement, as necessary, other parts of the solicitation that apply to the solicitation phase only, except for any provision authorized for use with a deviation. Include clear identification of what is being- altered.

Alterations in Solicitation (Apr 1984)

Portions of this solicitation are altered as follows:

None

(End of clause)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Federal Acquisition Regulation (FAR) or Department of Defense Federal Acquisition Regulation Supplement (DFARS)(48 CFR Chapter 1 or Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

As prescribed at 215.408(3), use the following provision:

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4 (c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable payroll data, invoices, business records.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

SSP Attachment 4

Section M - Evaluation Factors for Award

M-1 SOURCE SELECTION

1.0 Basis for Contract Award

1.1. This is a competitive Highest Technically Rated Offeror with a Fair and Reasonable Price (HTRO) source selection performed in accordance with Federal Acquisition Regulation (FAR) Part 15.3, as supplemented by the Defense Federal Acquisition Regulation Supplement (DFARS), and the Department of the Air Force Federal Acquisition Regulation Supplement (DAFFARS). These regulations are available electronically at <http://acquisition.gov/>. The Government will determine best value based on an objective assessment and validation of the HTRO with a fair and reasonable price.

1.2. The Government intends to evaluate proposals and award contracts without discussions with offerors except clarifications as described in FAR 15.306(a). Therefore, the offeror's initial proposal should contain the offeror's best terms from a price and technical standpoint.

1.3. Contract(s) may be awarded to the offerors who are deemed responsible in accordance (IAW) with FAR Subpart 9.1, as supplemented, and the requirements in Section M, paragraph M-2 subparagraph 2.0, Step 5, whose proposal conform to the solicitation's requirements (to include all stated terms, conditions, representations, certifications, and all other information required by Section L of this solicitation) and is judged, based on the evaluation factors to represent the best value to the Government. The Government seeks to award to the offerors who give the Air Force the greatest confidence that it will best meet the requirements and successfully perform the requirement. The Source Selection Authority (SSA) will base the source selection decision on an integrated assessment of proposals against all source selection criteria in the solicitation (described below). While the Government will strive for maximum objectivity, the source selection process, by its nature, is subjective; and therefore, professional judgment is implicit throughout the entire process.

1.4. The Government intends to strictly enforce all of the proposal submission requirements outlined in Section L. Failure to comply with these requirements may result in an offeror's proposal being determined non-conforming to the solicitation and rejected.

1.5. In the event the evaluation team discovers an exaggerated Self-Scoring Worksheet with numerous point deductions required based on ambiguous, deceptive, faulty, misleading, or inadequate supporting documentation, the offeror shall immediately be eliminated from further consideration for award. Falsification of any proposal submission, documents, or statements may subject the offeror to civil or criminal prosecution under Section 1001 of Title 18 of the United States Code.

2.0 Number of Contracts to be Awarded

Multiple awards shall be made as a result of this solicitation. The Government intends to award to up to five (5) 8(a) businesses who are validated as the highest technically rated, have a fair and reasonable evaluated price, and are determined responsible IAW FAR Subpart 9.1 and the requirements in Section M, paragraph M-2 subparagraph 2.0, Step 5.

3.0 Minimum Guarantee

All contractors who are awarded a contract under the Western Operational Ordering Contract for Infrastructure Enhancement Multiple Award Construction Contract (WOOKIE MACC) solicitation will be awarded a task order to meet the minimum guaranteed amount of \$2,000.00. Contractors will be required to attend a Pre-Construction Conference to discuss VSFB specifics and general WOOKIE MACC requirements. After the conference all the contractors awarded a contract under the WOOKIE MACC may invoice for the minimum guarantee. There is no guarantee of any task order beyond the minimum guarantee.

4.0 IDIQ Ceiling

The overall program will not exceed \$525,000,000.00 for the five (5) year base period and one (1) two (2) year option period. The total value of all task orders awarded under the indefinite-delivery, indefinite quantity (IDIQ) will not exceed this amount. Task orders will range in value from \$2,000.00 to \$25,000,000.00. Funding will be determined at the individual task order level.

5.0 Proposal Compliance and Offeror Responsibility

5.1 Proposal Substantiation

Unsubstantiated or misleading claims for any technical evaluation element could result in the Government determining that the offeror's proposed self-rated score is artificially inflated. If this were to occur, the Government will unilaterally downward adjust the offeror's score, potentially down to zero points. Self-rated scores shall be determined grossly misrepresented if an offeror misrepresented their scoring on six (6) or more Relevant Experience Projects. If the Government determines an offeror's self-rated score to be grossly misrepresented the Government may immediately cease evaluation and eliminate the offeror from further consideration for award.

5.2 Proposal Compliance

Offerors shall meet all solicitation requirements, such as terms and conditions, submission requirements, representations and certifications, and other instructions identified within the solicitation. Offerors shall comply with content required within each of the proposal sections. Failure to comply with any requirement of the solicitation may result in the Government determining the offeror to be unacceptable and ineligible for award. The Government will review each offeror's proposal to ensure all required documentation was provided in response to the solicitation. The Government will rely on the documentation provided by the offeror to facilitate the Contracting Officer's determination of proposal compliance.

5.3 Offeror Responsibility

No award shall be made to an offeror unless the Contracting Officer determines them to be responsible. To be determined responsible, an offeror shall meet the general standards described in FAR 9.104-1 and the requirements in Section M, paragraph M-2 subparagraph 2.0, Step 5. The Contracting Officer may consider information provided within any section of the proposal, and other information, not limited to proposal information, when making the determination of responsibility.

M-2 EVALUATION FACTORS AND METHODOLOGY

1.0 Evaluation of Proposals

The Government will select the proposal(s) that give the best value to the Government. To arrive at a decision, the Source Selection Evaluation Board (SSEB) will evaluate each offeror's Volume 1 - Executed Contract Documentation and Price Proposal and Volume II - Technical.

2.0 Evaluation Process

The evaluation process to be used is as follows:

Step 1 - Perform compliance review on all proposals to assess compliance with terms and conditions of the solicitation. Non-compliance with the terms and conditions of the solicitation may result in an unfavorable proposal evaluation and may be grounds to eliminate the proposal from consideration for contract award.

Step 2 - The Government will sort the offerors not eliminated from consideration in Step 1 from highest to lowest by the offerors' self-scores identified on the Self-Scoring Worksheets.

Step 3 - The Government will validate the offerors' self-rated technical proposals beginning with the top five (5) highest scored offerors' Self-Scoring Worksheets. If the Government is unable to validate an offeror's self-rated score based on the substantiating documentation, the Government will unilaterally downward adjust the offeror's self-rated score, potentially down to zero points. The Government will only adjust the offeror's self-rated score downward, no upward adjustments will be made. The Government may cease evaluation of an offeror and eliminate it from further consideration for award if its Self-Scoring Worksheet is found to be grossly misrepresented as defined in paragraph M-1, subparagraph 5.1 above.

If an offeror's validated score causes the offeror to fall below the top five (5) scores, the next highest self-score will be evaluated. Validation of self-scores will continue until the Government identifies the top five (5) validated scores. The Government at its sole discretion may continue validation of scores below the top five (5) highest validated scores to determine up to three (3) TBD IDIQ awardees eligible for potential on-ramping in accordance with the On-Ramping Procedures detailed in Section H, or if one or more of the prices for the top five (5) validated scores is determined not to be fair and reasonable in Step 4, or as otherwise determined to be in the best interest of the Government.

In the event two or more offerors achieve the same Government-validated technical proposal scores, the following will be used, in order, to rank proposals: (1) offeror with the higher number of unique design-build projects, (2) offeror with the higher number of highly complex projects, and (3) drawing of lots. Unique design-build projects are defined as projects included in Section I: Relevant Experience Projects of the Self-Scoring Worksheet which are not reused in multiple categories. Highly complex projects are defined as projects with 5 or more tasks as defined in Section L paragraph L-2 subparagraph 2.2.1.9.

Step 4 - The Government will evaluate the price for the top five (5) validated scores as identified in step 3 and not eliminated from consideration in step 1. If the price for one or more of the top five (5) validated scores is determined not to be fair and reasonable, the Government will resume score validation as detailed in Step 3 until the Government identifies the five (5) highest Government-validated technical proposal scores with fair and reasonable pricing. The Government, at its sole discretion, may continue price evaluations to determine up to three (3) TBD IDIQ awardees eligible for potential on-ramping in accordance with the On-Ramping Procedures detailed in Section H or as otherwise determined to be in the best interest of the Government.

Step 5 - Perform a responsibility determination on the five (5) highest Government-validated technical proposal scores with fair and reasonable pricing. In order to be determined responsible an offeror must meet the following conditions:

--Offeror must meet the standards identified in FAR 9.104-1;

--Offeror must have an active 8(a) status at the time of initial bid due date. Joint ventures must have an SBA approved Joint Venture Agreement or have submitted its Joint Venture Agreement to the SBA prior to the initial bid due date.

--Offeror must possess an active California General Contractor's License, "Class A" or "Class B", or equivalent license from a state with a reciprocity agreement with State of California, registered in the prime contractor's name; or must demonstrate a four (4) year history of experience in successfully completing multiple trade construction efforts. Multiple trade construction efforts are defined as projects which involve at least two (2) separate and distinct construction trades including but not limited to carpentry, plumbing, electrical, mechanical, painting, pipe fitting, sheet metal, welding, roofing, site work, site utilities, excavation, concrete, masonry, pavement repair, asbestos abatement, lead paint removal, security hardware installation, or demolition.

--Offeror must provide evidence that it is able to obtain a minimum single project bonding capacity of \$25M from an approved surety listed in the Department of the Treasury Circular 570 (<http://www.fms.treas.gov/c570/>) or other security permitted by FAR Subpart 28.2, unless prohibited by law or regulation.

If one or more of the five (5) offerors with highest Government-validated technical proposal scores and fair and reasonable pricing are determined non-responsible, the Government will forward the determination of non-responsibility to the Small Business Administration for review in accordance with FAR Subpart 19.6, except as exempted in FAR 19.602-1(a)(2), and may resume score validation and price evaluation as detailed in Steps 3 and 4. Evaluations will continue until the Government identifies the five (5) highest Government-validated technical proposal scores with fair and reasonable pricing who are determined responsible.

3.0 Evaluation Factors and Standards

3.1 Volume I - Executed Contract Documentation and Price Proposal

3.1.1 Compliance with Section L, Paragraph L-2, Subparagraph 2.1

3.1.1.1 The Government will review each offeror's Volume I - Executed Contract Documentation and Price Proposal to ensure all required documentation was provided in response to the solicitation. The Government will rely on the documentation provided by the offeror to facilitate the Contracting Officer's determination of proposal compliance.

3.1.1.2 Offeror's Executive Summary Sheet, Chapter 1 - SF 1442, Chapter 2 - Section K, Chapter 3 - Joint Venture Agreements (if applicable), Chapter 4 - SBA Validation, Chapter 5 - Contractor's License, Chapter 6 - Bonding Capacity, and Chapter 7 - Price Proposal will be evaluated on an Acceptable/Unacceptable basis regarding whether the requested proposal submission information meets all the conditions for the information requested in Section L paragraph L-2 subparagraph 2.1.

3.1.2 Price Proposal

3.1.2.1 The Government will evaluate the price for the top (5) highest scored offerors as identified in Section M paragraph M-2 step 3 Evaluation Process. The next three (3) offerors may be evaluated for price at the Government's discretion for TBD IDIQ award. The Government will evaluate highest scored offerors' Section J, Attachment 03, Volume I_Price Proposal Template for fair and reasonableness as a pass/fail criteria. An offer may be determined non-conforming to the solicitation and rejected if there is any missing or incomplete data on the Section J, Attachment 03, Volume I_Price Proposal Template.

3.1.2.2 Price proposals will be evaluated by reviewing the Program Manager, Superintendent, and Quality Control Manager hourly rates across fiscal years (FY) 2025 through FY 2032. These FYs will cover the five (5) year base and one (1) two (2) year option. Price proposals will be evaluated, using one or more of the techniques defined in FAR 15.404(b), in order to determine if it is fair and reasonable. For a price to be determined reasonable, it must represent a price to the Government that a prudent person would pay in the conduct of competitive business.

3.1.2.3 Normally, competition establishes price reasonableness. Therefore, comparison of the proposed prices will usually satisfy the requirement to perform a price analysis and other techniques need not be utilized. In limited circumstances, other price analysis techniques may be appropriate to establish price reasonableness.

3.2 Volume II - Technical

3.2.1 Self-Scoring Worksheet

3.2.1.1 Compliance with Section L, Paragraph L-2, Subparagraph 2.2

The Government will review each offeror's Volume II - Technical to ensure all required documentation was provided in response to the solicitation. The Government will rely on the documentation provided by the offeror to facilitate the Contracting Officer's determination of proposal compliance. Proposal submission information shall meet all conditions for the information requested in Section L paragraph L-2 subparagraph 2.2.

3.2.1.2 Scoring Validation

3.2.1.2.1 The HTRO methodology requires the offeror to submit a self-rated score based on the objective criteria and definitions described in Section L. The maximum number of points a contractor can receive is 75,000. Assessing technical excellence is inherent to the HTRO methodology with price. The Government will evaluate the offeror's self-rated technical proposal by validating the proposed Self-Scoring Worksheet. The Government will validate the offeror's self-rated scores using the substantiating documentation provided in accordance with Sections L paragraph L-2 subparagraphs 2.2.1.5 through 2.2.1.12. If the Government is unable to find the substantiating information within the referenced pages, paragraphs, tables, etc., the Government will not search further for the substantiating information. If the Government is unable to validate that offeror's self-rated score based on the substantiating documentation, the Government will unilaterally downward adjust the offeror's self-rated score, potentially down to zero points. The Government will only adjust the offeror's self-rated score downward, no upward adjustments will be made. Such adjustments are within the sole discretion of the Government and are based upon the substantiation of the self-rated score provided by the offeror.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.225-12	Notice of Buy American Requirement-Construction Materials Under Trade Agreements.	May 2014		

FAR Clauses Incorporated by Full Text

52.217-5	Evaluation of Options.	(Jul 1990)
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As prescribed in 17.208(c), insert a provision substantially the same as the following:

Evaluation of Options (July 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)